

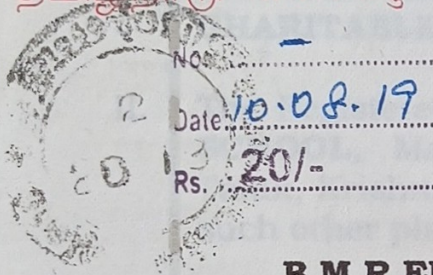
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தமிழ்நாடு தமில்நாடு TAMIL NADU

67AB 231714



BMR Educational and
Charitable Trust
- Mallasandram.

K. SELVARANI
STAMP VENDOR
LICENCE No. 868/1994
HOSUR-635-109

B M R EDUCATIONAL AND CHARITABLE TRUST **DEED OF TRUST**

This Deed of Public Charitable Trust is executed at Hosur on the 13th day of August 2019, by :

A.Manohar Reddy, aged 51 years S/o Late R.Abbaiiah Reddy, residing at No.6/3, New Balaji Nagar, Railway Station Road, Hosur Town and Taluk, Krishnagiri District, Tamil Nadu, herein after referred to as the **AUTHOR**. Aadhar NO. 7471 0254 5489 Mobile NO. 94433 29656

AND WHEREAS IN Pursuance of creation of Public Charitable Trust, A.Manohar Reddy, the **AUTHOR** has this day set apart a sum of Rs.1001/- (Rupees one thousand one only) and he has nominated the following persons to be Trustees of the **'B M R EDUCATIONAL AND CHARITABLE TRUST'**

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A. Manohar Reddy
AUTHOR

Registering Officer

1. *A. Manohar Reddy*
2. *Sh. ...*
3. *N. ...*
TRUSTEES

1. Mrs. V.Bharathy, aged 48 years W/o A.Manohar Reddy Aadhar NO. 35474231
 2. Mr. M.Naveen Reddy, aged 20 years S/o A.Manohar Reddy 2864
- Both are residing at No.6/3, New Balaji Nagar, Railway Station Road, Hosur Town and Taluk, Krishnagiri District, Tamil Nadu. Aadhar NO. 635784443240

AND WHEREAS the above persons have consented to act as the Trustees and have accepted the aforesaid sum of Rs.1001/- by way of Demand Draft No....478600.....dated...13.08.2019 issued by Syndicate Bank, Hosur Branch, as the Trust property.

NOW THEREFORE A PUBLIC CHARITABLE TRUST IS HEREBY CREATED UNDER THIS DEED OF TRUST SUBJECT TO THE FOLLOWING TERMS AND CONDITIONS :

- I. This Trust shall be called **`B M R EDUCATIONAL AND CHARITABLE TRUST` Mallasandram.**
- II. The Registered Office of the Trust shall be at **`B M R GLOBAL SCHOOL**, Mallasandram village, Thummanapalli post, Hosur Taluk, Krishnagiri District, Tamil Nadu. This office may be shifted such other place as the members deem fit if necessary.
- III. The AUTHOR hereby conveys the sum of Rs.1001/- (Rupees one thousand one only) for the creation of the Society to himself and the following persons, VIZ
 - 1.Mr.A.Manohar Reddy
 - 2.Mrs.V.Bharathy
 - 3.Mr. M.Naveen Reddy

As the Trustees of the Trust and the said sum of Rs.1001/- shall be deemed to the Trust Property of this Trust. The property of the Trust will include :

- a) The aforesaid sum of Rs.1001/-
- b) Such contributions and donations, endowments as may be made by the public, institutions and the like for the purpose of advancing the implementations of the objects and purpose of the charitable educational Trust.

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AUTHOR

Registering Officer

TRUSTEES

c) Such acquisition and additions that may be made by the Trustees.

IV. This Trust shall be administered by the Board of Trustees constituted in the manner set out in this declaration of Trust and in accordance with the terms and conditions enumerated hereinafter and the rules and regulations framed there under.

V. Objects of the Trust:

- a. To initiate, support and promote the advancement of educational activities, particularly home for children, schools, colleges, technical and social science centers, I.T. Institutions and such other Institutions anywhere in the country.
- b. To undertake projects of Rural Developments,
- c. To render medical help to the public by starting dispensary, Hospitals, Health centers etc.,
- d. To impart health education to rural masses and people residing in undeveloped/under-developed areas.
- e. To start educational institutions for imparting formal and non formal education to the public in general and to the rural masses and people residing in undeveloped/under-developed areas.
- f. To propagate the ideals and teachings and to promote and advance the cause of education in particular to impart the man making education as envisaged by great souls of our nation.
- g. To take up suitable programs for upliftment of women from under privileged and down trodden section of the society.
- h. To establish and run hostels for students to promote, conduct or patronize all activities of educational character for the benefits and utility of general public especially to the under privileged class of society.
- i. To promote or assist in promoting the understanding of the history, culture, art, music, spirituality and literature.

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 AUTHOR
 Registering Officer

TRUSTEES
 Bh. v. 11. v

- j. To support and render financial assistance to charitable and educational causes and institutions. Trusts or societies by means of donations, grants on such terms and conditions as the Trustees deem fit and proper which in the opinion of the Trustees would carry out all or any objects of the society.
- k. To do all such things as the Trustees find it necessary for the due fulfillment of the objects of this Trust.
- VI. The Trust as Public Charitable Trust shall render its activities to the public without distinction of caste, creed, religion etc.,
- VII. The Trust shall be in evocable.
- VIII. The Trust shall be purely "Secular" in nature and shall not represent any religion at all.
- IX. The funds and income of the Trust shall be solely utilized towards the achievements of the objects and no portion of it shall be utilized for payment of Trustees by way of profit, interest, dividends etc.,
- X. Trust shall be administered by a Board of Trustees constituted along with the following Trustees :
 - 1. Mr.A.Manohar Reddy
 - 2. Mrs.V.Bharathy
 - 3. Mr.M.Naveen Reddy
- a. Above office bearers of the Trustees shall hold office for a period of 3 years from the date of this deed of Trust or till new Board of Trustees is constituted in accordance with the foregoing provisions of this instruments whichever is later. The retiring trustees shall be eligible for re appointment.
- b. The Board of [Trustees shall have powers to co-opt one or more trustees], however the total number of Trustees on the Board shall not exceed 7(seven)

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Chuluddy
 Registering Officer

AUTHOR

Chuluddy
Bh.v. + M.V
Naveen

TRUSTEES

c. Office bearers of the Trustees are the following persons

1. Chairman
2. Secretary
3. One person as member

XI. All the Trustees shall be residents in India and any Trustee who leave India permanently shall vacate his or her office

XII. A Trustee shall cease to hold the office

- a. on his death
- b. on his resignation
- c. on his becoming insolvent
- d. on his being expelled by the Board of Trustees for his acting or having acted against the interest of the Trust by a majority vote, provided such Trustee has been given a responsible opportunity of explaining his or her conduct to the Board of Trustees.

XIII. Any vacancy caused in the office of Trustees under the circumstances prescribed in clause XI above shall be filled up by the chairman and the Trustees so nominated shall hold office for the unexpired term of the Trustee vacating the office.

XIV. The Board of Trustees shall elect one among themselves as the chairman, secretary and Treasurer and such persons shall hold the office for three years. The Board of Trustees shall also determine the powers, duties, responsibilities and other terms and conditions connected therewith. The Board of Trustees shall have power to verify the terms and conditions of office appointment.

XV. The Board of Trustees may elect from among the members a Trust of the society for three years. The Board of Trustees also shall determine the powers, duties, responsibilities and other terms and conditions connected therewith.

Powers, duties, responsibilities and other terms and conditions and such an appointee shall hold the office for such period of appointment. The Board of Trustees shall have the power to change such secretary even before the expiration of his office and vary the terms and conditions of appointment.

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Aulhady

AUTHOR

Registering Officer

Aulhady
Bh. r. 14. v
Shuk

TRUSTEES

- XVI. The Board of Trustees may also appoint an outside as whole time manager and other staff on payment of such remuneration and also such terms and conditions of his as may be decided by the Board.
- XVII. With a view to carrying out the objects of the Trust herein above mentioned and to manage and administer the Trust funds and without prejudice to the generality of any powers hereby or by law conferred or implied or vested in the board of Trustees, the Board of Trustees shall continue to have the following powers :
- a) To apply and use the funds for all or any of the objects of the Trust and or to accumulate the surplus unapplied portion of income and invest the same, subject to the provisions of the Income Tax Act 1961, as amended from time to time relating to accumulation of income and investment thereof. The funds of the Trust shall be invested in the modes specified under the provisions of Income Tax Act 1961, governing charitable Trust.
 - b) To receive any money or assets in any shape or form or gift or donation or foreign contributions and to hold the same as capital fund or apply it for furthering the objects.
 - c) To invest the funds from time to time in such manner as may be permitted under the provisions of Income Tax Act and to dispose of, alter or vary the investment from time to time to realize the investment.
 - d) To compromise, compound, abandon, submit to arbitration or otherwise institute any action, suits, proceedings, claims or other things whatsoever arising out of the administration of the Trust fund and to enter into, give, execute, and do such agreements, releases and other things as may seem expedient without being liable or responsible for any laws occasioned by any act or things so done by them in good faith.

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Amul Chaudhary

AUTHOR

Registering Officer

Amul Chaudhary
Sh. r. T. V.
N. B.

TRUSTEES

- e) It is hereby declared that the chairman and the Secretary duly authorized by the Board of Trustees shall have the power to execute any documents required to be registered under the law and it is further declared that such document shall be deemed to have been properly executed by the Trust.
- f) To receive, collect or realize or cause collection or realization of all incomes that acquired or become due on all or any investments and to grant receipts and discharges.
- g) To represent the Trust in all courts (original and appellate) or before judicial or quasi Judicial Authorities and other authorities, departments of government, semi government or local authority.
- h) To sign and verify all pleadings, Memorandum of Appeal, petition and applications of all kinds and to engage Lawyers.
- i) To borrow or raise any money that may be required by the Trust upon such terms as may be deemed fit and secure any money so borrowed by mortgage or charge of all or any part of the assets belonging to the Trust.
- j) To open and maintain accounts with a scheduled Bank/s and authorize operations of such accounts by the chairman and secretary or severally and to draw, accept, endorse, discount and /of negotiable and quasi negotiable instruments on behalf of the Trust.
- k) To appoint and /or dismiss staff, executives, officials, care takers, attendants and other employees on such terms as the Board may think fit.

Amul Khandy

AUTHOR

Amul Khandy
Bh. v. + N. v
N. v

TRUSTEES

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Registering Officer

- l) To appoint committees or sub committees from among the members of the Board of Trustees and /or along with others and assigns duties and to frame such rules of business as the Board of Trustees shall think fit, and to alter or vary the same from time to time provided such rules of business shall not be inconsistent with the terms of these presents. The Board shall be entitled to frame, constitute and regulate the procedures of such committee or sub committees.
- m) To undertake and carry on any other work which may seem to the Board of Trustees capable of being conveniently carried on in connection with, or calculated, directly or indirectly to help the promotion of the Trust.
- n) To decide all questions arising in the administration of Trust and including all questions relating to the interpretation of these presents, the administration of any institution maintained by the Trust or concerning anything or any matter relating to connected with or arising of these presents or the operation thereof. The decision of the Board of Trustees in all or any of the matters aforesaid shall be final.
- o) The Board of Trustees shall conduct the activities of the Trust in accordance with the stipulations set out herein. The Board of Trustees may delegate all or any of the powers vested in them to such persons for such period as they may deem fit and may at any time revoke, vary, alter, rescind such powers so delegated.
- p) The powers enumerated in these presents shall be exercised by the Board of Trustees strictly in conformity with the conditions laid down under the provisions of Income Tax Act 1961(43 of 1961) as amended from time to time, so that the income of the Trust will be exempted from the Income Tax and the donors will get deduction in respect of their donations, under Section 80-G of Income Tax Act 1961 for each and every assessment year.
- q) To do all others acts, deeds, matters and things that may be deemed necessary for carrying out the objects of this Trust for its administration.

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Registering Officer

[Signature]

AUTHOR

[Signature]
[Signature]
[Signature]

TRUSTEES

- XVIII. The Board of Trustees may appoint a Treasurer from amongst the Trustees. The Treasurer shall keep or cause to be recorded the receipts and payments and also maintain or cause to be maintained documents relating to these transactions. The account shall be audited once a year by an auditor empowered to audit the account of a Joint Stock company.
- XIX. The official year of the Trust shall be the financial year.
- XX. All provisions of this deed of Trust as well as any rules and regulations framed by the Trustees shall be interpreted by the Trustees. Their decisions shall be final and binding. The properties of the Trust shall vest in the Board of Trustees who will be represented by the Trustees of the Trust.
- XXI. The quorum :**
- The quorum for the meeting shall be two or one third of the total number of Trustees whichever is greater.
 - All decisions of the Board of Trustees shall be taken by a majority vote. In the case of equality of votes, the chairman of the meeting may exercise a casting vote.
 - It shall be opened to the Board of Trustees to adopt any resolution by circulating the same among the Trustees, provided such a resolution is attended to by a majority of Trustees. All the resolutions adopted by circulation shall be placed in the immediate next meeting of the Board of Trustees for recording the same.
- XXII. The Chairman shall guide and direct the Secretary in regard to the Administration of the Trust. The Secretary shall be responsible to the president and the Board of Trustees. In the absence of the Secretary the Chairman shall direct any other Trustee to perform the duties of the Secretary.

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Amul Chaudhary
AUTHOR

M
 Registering Officer

Amul Chaudhary
Bh. r. + N. v
N. B.
TRUSTEES

- XXIII. The Trustees shall meet as often as the circumstances required to transact the business of the Trust. There shall at least be two meetings of the Trustees in a year. The Secretary shall convene the meetings of the Trustees and prepare the agenda as to the items to be decided at the meeting. The secretary shall be responsible to record the minutes of the meeting and to carry out the directions given or decisions taken in such a meeting. He/she shall report to the Chairman and the Board of Trustees of the action taken by him in implementing the directions of the Trustees.
- XXIV. All Legal proceedings by or against the Trust shall be instituted in the name of the Trust through its Chairman.
- XXV. Every Trustees and secretary of the Trust shall be indemnified out of the funds of the Trust against all loss or expenses incurred in the discharge of his duties, except such as has happened through willful negligence or dishonesty.
- XXVI. The Trustees shall have the power to alter or amend the provisions of this deed of Trust, provided that such alteration or amendment shall not be inconsistent with the objects of this Trust as well as the provisions of the Income Tax Act 1961 governing the charitable Trust, provided further that the amendments shall not be given effect to unless approved by the commissioner of Income Tax.
- XXVII. It is hereby declared that the Trustees have power to wind up the Trust by merging or amalgamating with another Trust, charitable society having similar objects and enjoying a recognition by the commissioner of Income Tax U/s 80-G of the Income Tax Act 1961, if the Trustees decided that the object of this Trust would be better served by taking such a step. In such an event no portion of assets of the Trust remaining on that date shall be distributed amongst the Trustees.

Amul Chaudhary
AUTHOR

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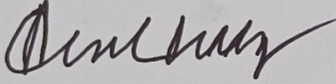
Amul Chaudhary
Sh. r. + Y. v.
W. B.
Registering Officer

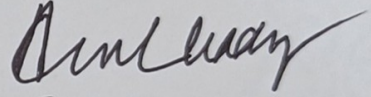
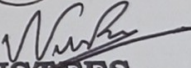
XXVIII. This Trust is not profit oriented and therefore it shall not conduct any activity for financial profit.

XXIX. This Trust shall have no activities outside of India and therefore all its activities shall be restricted within the territorial limits of India.

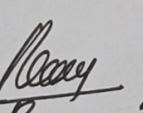
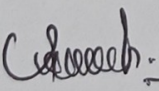
XXX. At present there are no movable and immovable properties of the trust. In future any properties made by the trust will belong to the Trust only and the time of dissolution of Trust if any, the trustees shall not have any right over the same and the properties shall ~~be transferred to similar Trust.~~

IN WITNESS WHEREOF, parties, i.e the Author and the Trustees have herein set their hands on the day, month and year and at the place mentioned.

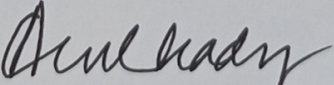

AUTHOR


Bh.r. 14.V

TRUSTEES

Witnesses :

1.  s/o Krishna Reddy Chitharapalli (r)
(Rama moorthy) Nallurpalli Hosur
2.  M. (UMESH) s/o Murugesu, Ganesh colony
Kelmangalam

Drafted by :


A. Manohar Reddy
Advocate
R. No. 16(a) / 1997
HOSUR.

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Registering Officer

